

26VECV03032 26VECV03032

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Case Number: 26VECV03032 Hearing Date: September 23, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Seyran

Ovsepyan, et al.,

Plaintiffs,

v.

Jaguar Land Rover North America, LLC,

et al.

Defendants.

Case Number Department

26VECV03032 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer without
Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Sustain with leave to amend.

I.

BACKGROUND

On

January 21, 2026, Plaintiffs Seyran Ovsepyan and Ann Collision Center, Inc. ("Plaintiffs") leased a Range Rover Sport (the "Vehicle"). (Complaint ¶ 11.) The Vehicle was defective. (Complaint ¶ 12.)

On

May 22, 2026, Plaintiffs filed a complaint against Defendants Jaguar Land Rover North America, LLC, Jaguar Land Rover Woodland Hills, and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; (3) violation of Song-Beverly Act section 1793.2(b); (4) violation of Song-Beverly Act section 1793.22 – Tanner Consumer Protection Act; (5) negligence; and (6) violation of California Civil Code section 1796.5.

On

July 6, 2026, Defendants Jaguar Land Rover North America, LLC and Jaguar Land Rover Woodland Hills (collectively, "Defendants") filed a demurrer without motion to strike. On July 22, 2026, Plaintiffs filed an opposition. As of July 30, 2026, no reply had been filed. On August 3, 2026, the day before the hearing, the court posted a tentative. On the day of the hearing, the moving party failed to appear and did not return the courtroom assistant's email or phone call. The Court continued the matter to September 23, 2026. Weeks later, on September 16, 2026, counsel for defendant filed a reply. The court does not consider this untimely reply.

II.

TIMELINESS

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“A person

against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.” (Code Civ. Proc., § 430.40, subd. (a).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before the set hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Electronic service extends the deadline

by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

If the last day to

perform is a holiday, then the period is extended to a day that is not a holiday. (Code Civ. Proc., § 12a, subd. (a).) Holidays include days city, county, state, or public offices are closed for the whole of any day. (Code Civ. Proc., § 12b.)

Plaintiffs served Defendant Jaguar Land

Rover North America, LLC (“Jaguar”) by personal service on June 5, 2026. (Proof of Service filed 06/09/25.) Plaintiffs served Defendant Jaguar Land Rover Woodland Hills (“Jaguar Woodland Hills”) by personal service on June 6, 2026. (Proof of Service filed 06/17/26.) Defendants filed the demurrer on July 6, 2026. The demurrer was timely under Code of Civil Procedure section 430.40.

The demurrer and opposition were also

timely filed under Code of Civil Procedure section 1005, subdivision (b).

III.

MEET

AND CONFER

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California Code of Civil Procedure

section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to

attempt to resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendants' counsel submits a declaration stating they sent Plaintiffs' counsel a meet and confer email, but the parties were unable to resolve the issues. (Roth Declaration ¶ 2.)

Code of Civil Procedure section 430.41, subdivision (a) requires meeting and conferring in person, by telephone, or by video conference. Meeting and conferring by email is insufficient.

"A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., § 430.41, subd. (a)(4).) However, "trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort." (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3.)

The court may not overrule a demurrer based on insufficient meet and confer efforts. As such, the court will consider the merits. In the future, counsels must satisfy their meet and confer obligations, or the court will consider continuing the hearing until the parties have an opportunity to properly meet and confer.

IV.

LEGAL

STANDARD

"A demurrer tests the pleading alone, and not the evidence or the facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The court also considers "judicially noticed matters." (Id.) A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

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A party may demur to a complaint because the complaint "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).)

V.

DISCUSSION

Defendants demur to Plaintiffs' fifth cause of action for negligence and sixth cause of action for violation of California Civil Code section 1796.5. (Notice of Demurrer p. 3.) Defendants argue Plaintiffs allege only conclusions and do not allege facts showing negligence. (Demurrer Memorandum pp. 4-5.) Defendants further argue both causes of action are barred by the economic loss rule. (Demurrer Memorandum pp. 6-9.) Finally, Defendants argue both causes of action fail against Jaguar because Plaintiffs do not allege Jaguar performed any repairs. (Demurrer Memorandum p. 9.)

In opposition, Plaintiffs state that while meeting and conferring with Defendants, Plaintiffs offered to amend the complaint to withdraw the common law negligence cause of action, clarify the cause of action for violation of California Civil Code section 1796.5 is alleged only against Jaguar Woodland Hills, and to provide additional factual allegations to clarify the claim. (Opposition p. 2.)

Civil Code section

1796.5 states: "[a]ny individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or

repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner.”

Plaintiffs argue they sufficiently plead a cause of action under Civil Code section 1796.5 by alleging a specific statutory duty, alleging Jaguar Woodland Hills “undertook to diagnose and repair the . . . Vehicle, and . . . that [Jaguar Woodland Hills] failed to perform those repairs in a competent and workmanlike manner.” (Opposition p. 6.)

As an initial matter, in the complaint, Plaintiffs inconsistently define “Dealer” as both “Jaguar Land Rover Woodland Hills” and “Jaguar Land Rover South Bay[.]” (Complaint pp. 1-2, ¶ 4.) The court presumes this is a typographical error.

Plaintiffs allege the Vehicle had defects including engine-related defects, illumination of the check engine light, defective door handles, and “other nonconformities.” (Complaint ¶ 12.) Plaintiffs allege Jaguar Woodland Hills “had a duty of care in the designing, manufacturing, testing, distributing, selling, inspecting, repairing, marketing, constructing, labeling, and advertising of vehicles and component parts, including the Subject Vehicle.” (Complaint ¶ 76.) Plaintiffs also allege Jaguar Woodland Hills “had a duty to warn all users of their vehicle, including but not limited to the component parts of the vehicle, of the attendant risks of harm, said risks of harm being at all times known and/or foreseeable to the Dealer/Authorized Agent authorized to perform repairs and LAND ROVER.” (Complaint ¶ 77.) Plaintiffs allege Jaguar Woodland Hills “negligently and carelessly manufactured, designed, constructed, equipped, tested, installed, repaired, assembled, maintained, and handled the Subject Vehicle so that it was and is defective and unsafe when used and operated in the manner for which it was intended.” (Complaint ¶ 79.) Plaintiffs allege they have had “financial and emotional damages” and are entitled to general damages. (Complaint ¶ 81.) Plaintiffs incorporate preceding and succeeding allegations into the sixth cause of action for violation of California Civil Code section 1796.5. (Complaint ¶ 82.)

A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles, supra, 42 Cal.4th at p. 550.)² Plaintiffs allege Jaguar Woodland Hills owed Plaintiffs a duty of care, Jaguar Land Rover North

America negligently repaired the Vehicle, and Plaintiffs sustained damages. (Complaint ¶¶ 76-77, 79, 81.) The court concludes Plaintiffs sufficiently allege Jaguar Woodland Hills failed to perform the services in a good and workmanlike manner.

Generally, a plaintiff may not recover in tort for “negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (Rattagan v. Uber Technologies, Inc. (“Rattagan”) (2024) 17 Cal.5th 1, 20, original italics.) “[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred [citations] unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (Id. at pp. 20-21.)

Plaintiffs argue that “Defendants have not established, as a matter of law, that the Economic Loss Doctrine bars Plaintiffs’ statutory claim under Civil Code section 1796.5.” (Opposition p. 8.)

The court notes Plaintiffs also fail to cite any authority indicating the economic loss rule does not apply here.

The court interprets Plaintiffs’ opposition as indicating they are alleging Jaguar Woodland Hills undertook to diagnose and repair the Vehicle but failed to remedy the defects. (Opposition p. 7.) Plaintiffs allege no property damage or physical harm. Accordingly, Plaintiffs’ remedy, in the absence of physical injury or other property damage, is under the contract. Thus, under the economic loss rule, Plaintiffs’ remedy is for breach of contract, not negligent repair.

The demurrer on this ground is sustained.

Plaintiffs represent

in the opposition they are prepared to withdraw the common law negligence cause of action and clarify the sixth cause of action for violation of California Civil Code section 1796.5 is alleged only against Jaguar Woodland Hills. (Opposition p. 2.) Thus, it is unnecessary for the court to address Defendants' remaining arguments.

VI.

LEAVE

TO AMEND

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.'" (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

Plaintiffs'

opposition represents they are prepared to amend the complaint and plead additional factual allegations that resolve the defects identified above. Thus, the court finds there is a reasonable possibility Plaintiffs can cure the defects identified above.

IV.

CONCLUSION

For

the foregoing reasons, the court sustains the demurrer. Plaintiffs are granted leave to amend within thirty (30) days of this order.

Dated: August 4, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court